

Part 4: Drugs and Cosmetics Rules , 1945

Rule 160D

Title: Conditions of Approval

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160D

Plain English Summary:

Rule 160D specifies the conditions that an approved laboratory must follow while testing Ayurvedic, Siddha and Unani drugs. The laboratory must maintain suitable staff, premises, equipment, sample storage and testing records. It must also allow inspections and report any drug that does not meet the required quality standards.

The Exact Legal Text:

160D. Conditions of approval.—An approval in Form 41 shall be subject to the following conditions, namely:

I. The Institution granted approval under this Part (hereinafter referred to as the approved laboratory) shall provide and maintain adequate staff and adequate premises and equipment as specified in rule 160B.

II. The approved laboratory shall provide proper facilities for storage so as to preserve the properties of the samples to be tested by it.

III. The approved laboratory shall maintain records of tests for identity, purity, quality and strength carried out on all samples of Ayurvedic, Siddha and Unani drugs and the results thereof together with the protocols of tests showing the readings and calculation in such form as to be available for inspection and such records shall be retained in the case of substances for which date of expiry is assigned; for a period of two years from such date of expiry and in the case of other substances, for a period of three years.

IV. The approved laboratory shall allow the Inspector appointed under this Act to enter with or without prior notice the premises where the testing is carried out and to inspect the premises and the equipment used for test and the testing procedures employed. The laboratory shall allow the Inspectors to inspect the registers and records maintained under these rules and shall supply to such Inspectors such information as they may require for the purpose of ascertaining whether the provisions of the Act and rules made thereunder have been observed.

V. The approved laboratory shall from time to time report to the approving authority any changes in the person-in-charge of testing of Ayurvedic, Siddha and Unani drugs or the expert staff responsible for testing, as the case may be, and any material alterations in the premises or changes in the equipment used for the purposes of testing which have been made since the date of last inspection made on behalf of the approving authority before the grant or renewal of approval.

VI. The approved laboratory shall furnish reports of the results of tests or analysis in Form 50.

VII. In case any sample of Ayurvedic, Siddha and Unani drug is found on test to be not of standard quality, the approved laboratory shall furnish to the approving authority and the licensing authority of the State where the manufacturer and/or sender of the Ayurvedic, Siddha and Unani drugs is located, a copy of the test report on the sample with the protocols of tests applied.

VIII. The approved laboratory shall comply with the provisions of the Act and rules made thereunder and with such further requirements, if any, as may be specified in the rules made from time to time under Chapter IVA of the Act of which the approving authority has given the approved laboratory not less than four months' notice.

IX. The approved laboratory shall maintain an inspection book to enable the Inspector to record his impression or defects notices.

Keywords/Triggers:

Rule 160D, approved laboratory conditions, Form 41, Ayurvedic drug testing records, sample storage, Form 50 test report, laboratory inspection, non-standard quality drug

Rule 160E

Title: Inspection Before Grant of Approval

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160E

Plain English Summary:

Rule 160E requires the proposed testing laboratory to be inspected before approval is granted. Inspectors appointed or designated by the Central Government and State Government examine the laboratory premises, equipment and professional qualifications of the expert staff.

The Exact Legal Text:

160E. Inspection before grant of approval.—Before an approval in Form 48 is granted, the approving authority shall cause the laboratory at which the testing of Ayurvedic, Siddha and Unani drugs, as the case may be, is proposed to be carried out to be inspected jointly by the Inspectors appointed or designated by the Central Government and State Government for this purpose, who shall examine the premises and the equipment intended to be used for testing of drugs and verify into the professional qualifications of the expert staff who are or may be employed by the laboratory.

Keywords/Triggers:

Rule 160E, laboratory inspection, Form 48, Central Government Inspector, State Government Inspector, testing equipment, expert staff qualifications

Rule 160F

Title: Report of Inspection

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160F

Plain English Summary:

Rule 160F requires the Inspectors to submit a detailed report of the laboratory inspection to the approving authority. This report helps the authority determine whether the laboratory satisfies the conditions for approval.

The Exact Legal Text:

160F. Report of inspection.—The Inspectors appointed by the Central Government as stated in rule 160E shall forward to the approving authority a detailed report of the results of the inspection.

Keywords/Triggers:

Rule 160F, inspection report, testing laboratory approval, approving authority, inspection results, Ayurvedic drug testing